

26STCV02190 26STCV02190

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Case Number: 26STCV02190 Hearing Date: September 2, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING

ALLA SUKHORUKOVA

vs.

UNIVERSAL

PROTECTION SERVICE LLP, et al.

Case

No.: 26STCV02190

Hearing Date: September 2, 2026

Defendant's

motion to compel arbitration is GRANTED, with the exception of the representative component of the PAGA claim. This action is stayed pending the completion of arbitration.

On

1/21/2026, Plaintiff Alla M. Sukhorukova (Plaintiff) filed suit against

Defendant Universal Protection Service LLP dba Allied Universal Security Services (Defendant), alleging: (1) PAGA; (2) failure to provide suitable seating; (3) disability harassment; (4) disability discrimination; (5) failure to accommodate disability; (6) failure to engage in interactive process; (7) failure to prevent discrimination and harassment; (8) retaliation; and (9) retaliation for requesting accommodation.

On

4/23/2026, Defendant moved to compel arbitration and stay proceedings.

Legal Standard

Where the Court has determined that an agreement to arbitrate a controversy exists, the Court shall order the petitioner and the respondent to arbitrate the controversy ...unless it determines that... grounds exist for rescission of the agreement.” (Code Civ. Proc., § 1281.2.) Among the grounds which can support rescission are fraud, duress, and unconscionability. (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 239.) The Court may also decline to compel arbitration wherein there is possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc., § 1281.2 (c).)

Discussion

The party moving to compel arbitration “bears the burden of proving [the] existence [of an arbitration agreement] by a preponderance of the evidence.” (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) The moving party also bears the burden of demonstrating that the claims fall within the scope of the arbitration agreement. (*Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.)

Here,

Defendant submitted evidence that “[u]pon hire with Allied Universal, Plaintiff entered into an arbitration agreement with Allied Universal whereby she agreed to arbitrate employment-related disputes, including wage and hour disputes. The agreement has an explicit provision governing PAGA claims, indicating that the individual component of the claim is subject to arbitration and that the representative component shall be stayed pending completion of the individual arbitration.” (Bhangoo Decl. ¶ 2.)

In

opposition, Plaintiff argues that Defendant here cannot enforce the agreement because the agreement names "Universal Services of America, LP" as the contracting "Company." Yet, the movant is "Universal Protection Service, LP." [Bhangoo Decl., Ex. A, § 1; Mot. at p. 1.]

However,

Allied Universal Security is a d/b/a of Defendant Universal Protection Service. Defendant submitted evidence that Plaintiff was an employee of Defendant Universal Protection Service, LP dba Allied Universal Security Services, and that this is the party that entered into the underlying employment agreement/arbitration agreement that it now moves to enforce.

Taken

together, Defendant has established by a preponderance of the evidence that an arbitration agreement exists, and that Plaintiff's claims are covered by that agreement. Accordingly, the burden shifts to the Plaintiff to establish that the arbitration clause should not be enforced. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012)

55 Cal.4th 223, 236. (*Pinnacle*).)

II.

Plaintiff's Burden

The party

opposing arbitration bears the burden of proving, by a preponderance of the evidence any defense, such as unconscionability or duress. (*Pinnacle*, supra, 55 Cal.4th at p. 236.)

Here,

Plaintiff argues that the arbitration agreement is procedurally unconscionable because it is an adhesion contract.

Courts have

found that where pre-employment adhesion contracts are involved, a degree of procedural unconscionability is always present. However, where "there is no other indication of oppression or surprise, the degree of procedural unconscionability of an adhesion agreement is low, and the agreement will be enforceable unless the degree of substantive unconscionability is high." (*Ajamian v. CantorCO2e, L.P.* (2012) 203 Cal.App.4th 771, 796.)

Plaintiff argues that the agreement is substantively unconscionable because its scope extends to all claims and is of perpetual determination. In support, Plaintiff points to cases like *Phan v. Knight Sacramento SU Inc.* (2026) 121 Cal.App.5th 641. However, there the agreement applied to “any and all claims which arise out of the employment context or any other interaction/relationship we had, have or may have in the future.” As such, the Court found that the plain language of Phan's agreement was so broad as to encompass all claims against Knight and related third parties, whether or not related to her employment. By contrast, here, the arbitrable claims are appropriately limited to those related to, and arising out of Plaintiff's employment.

Accordingly, while Plaintiff has demonstrated a degree of procedural unconscionability, she has not demonstrated any degree of substantive unconscionability. As a result, the Court finds that the arbitration agreement is enforceable. (*Ajamian, supra*, Cal.App.4th at p. 796.)

Based on the foregoing, Defendant's motion to compel arbitration is granted, with the exception of the representative component of the PAGA claim which Defendant agrees is not subject to arbitration. This action is stayed pending the completion of arbitration.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.